

Impervious Site Coverage

BY-LAW NO. 8202

A By-law to amend By-law No. 3575, being the Zoning and Development By-law

THE COUNCIL OF THE CITY OF VANCOUVER, in open meeting assembled, enacts as follows:

1. By-law No. 3575 is amended by adding the following new sub-clauses to section 4.8 of the appropriate district schedules as indicated:

(a) in the RS-1A, RS-1B and RS-3 & RS-3A District Schedules:

"4.8.4 The area of impermeable materials, including building coverage, shall not exceed 60 percent of the total site area except that where developed secondary vehicular access to a site is not available, the Director of Planning may exclude from the area of impermeable materials an amount not exceeding:

(a) for the first parking space, the product of the distance, in metres as measured along the driveway centre line, from the point where the driveway crosses the property boundary to the point where it meets the nearest side of the approvable parking space times 3.1 m; and

(b) for each additional parking space, 67 m² to accommodate vehicular access and manoeuvring.

4.8.5 For the purposes of section 4.8.4, the following materials shall be considered impermeable: the projected area of the outside of the outermost walls of all buildings, including carports, covered porches and entries; asphalt; concrete; brick; stone; and wood.

4.8.6 Notwithstanding section 4.8.5, gravel, river rock less than 5 cm in size, wood chips, bark mulch, and other materials which, in the opinion of the Director of Planning, have fully permeable characteristics when in place installed on grade with no associated layer of impermeable material (such as plastic sheeting) that would impede the movement of water directly into the soil below, are excluded from the area of impermeable materials.",

(b) in the RS-1 & RS-1S and RS-4 District Schedules:

"4.8.5 The area of impermeable materials, including building coverage, shall not exceed 60 percent of the total site area except that where developed secondary vehicular access to a site is not available, the Director of Planning may exclude from the area of impermeable materials an amount not exceeding:

(a) for the first parking space, the product of the distance, in metres as measured along the driveway centre line, from the point where the driveway crosses the property boundary to the point where it meets the nearest side of the approvable parking space times 3.1 m; and

(b) for each additional parking space, 67 m² to accommodate vehicular access and manoeuvring.

4.8.6 For the purposes of section 4.8.5, the following materials shall be considered impermeable: the projected area of the outside of the outermost walls of all buildings, including carports, covered porches and entries; asphalt; concrete; brick; stone; and wood.

4.8.7 Notwithstanding section 4.8.6, gravel, river rock less than 5 cm in size, wood chips, bark mulch, and other materials which, in the opinion of the Director of Planning, have fully permeable characteristics when in place installed on grade with no associated layer of impermeable material (such as plastic sheeting) that would impede the movement of water directly into the soil below, are excluded from the area of impermeable materials.",

(c) in the RS-2 District Schedule:

"4.8.6 Except for multiple dwellings, the area of impermeable materials, including building coverage, shall not exceed 60 percent of the total site area except that where developed secondary vehicular access to a site is not available, the Director of Planning may exclude from the area of impermeable materials an amount not exceeding:

(a) for the first parking space, the product of the distance, in metres as measured along the driveway centre line, from the point where the driveway crosses the property boundary to the point where it meets the nearest side of the approvable parking space times 3.1 m; and

(b) for each additional parking space, 67 m² to accommodate vehicular access and manoeuvring.

4.8.7 For the purposes of section 4.8.6, the following materials shall be considered impermeable: the projected area of the outside of the outermost walls of all buildings, including carports, covered porches and entries; asphalt; concrete; brick; stone; and wood.

4.8.8 Notwithstanding section 4.8.7, gravel, river rock less than 5 cm in size, wood chips, bark mulch, and other materials which, in the opinion of the Director of Planning, have fully permeable characteristics when in place installed on grade with no associated layer of impermeable material (such as plastic sheeting) that would impede the movement of water directly into the soil below, are excluded from the area of impermeable materials.", and

(d) in the RS-5 & RS-5S and RS-6 District Schedules:

"4.8.6 Notwithstanding section 4.8.5, gravel, river rock less than 5 cm in size, wood chips, bark mulch, and other materials which, in the opinion of the Director of Planning, have fully permeable characteristics when in place installed on grade with no associated layer of impermeable material (such as plastic sheeting) that would impede the movement of water directly into the soil below, are excluded from the area of impermeable materials.".

2. By-law No. 3575 is further by adding the following new sub-clauses to section 5 of the appropriate district schedules as indicated:

(a) in the RS-1 & RS-1S District Schedule:

"5.4 The Director of Planning may relax section 4.8.5 for buildings existing prior to May 30, 2000 to a maximum of 70 percent impermeable materials site coverage provided that:

(a) the percentage of the site covered by existing impermeable materials is not increased by the proposed development;

(b) he considers the advice of the City Engineer; and

(c) he considers all applicable policies and guidelines adopted by Council.

5.5 The Director of Planning may relax the requirements of section 4.8.5 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:

(a) he considers all applicable guidelines and policies adopted by Council; and

(b) he considers the advice of the City Engineer.",

(b) in the RS-1A District Schedule:

"5.2 The Director of Planning may relax section 4.8.4 for buildings existing prior to May 30, 2000 to a maximum of 70 percent impermeable materials site coverage provided that:

(a) the percentage of the site covered by existing impermeable materials is not increased by the proposed development;

(b) he considers the advice of the City Engineer; and

(c) he considers all applicable policies and guidelines adopted by Council.

5.3 The Director of Planning may relax the requirements of section 4.8.4 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:

(a) he considers all applicable guidelines and policies adopted by Council; and

(b) he considers the advice of the City Engineer.",

(c) in the RS-2 District Schedule:

"5.3 The Director of Planning may relax section 4.8.6 for buildings existing prior to May 30, 2000 to a maximum of 70 percent impermeable materials site coverage provided that:

(a) the percentage of the site covered by existing impermeable materials is not increased by the proposed development;

(b) he considers the advice of the City Engineer; and

(c) he considers all applicable policies and guidelines adopted by Council.

5.4 The Director of Planning may relax the requirements of section 4.8.6 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:

(a) he considers all applicable guidelines and policies adopted by Council; and

- (b) he considers the advice of the City Engineer.",
- (d) in the RS-1B and RS-3 & RS-3A District Schedules:
- "5.3 The Director of Planning may relax section 4.8.4 for buildings existing prior to May 30, 2000 to a maximum of 70 percent impermeable materials site coverage provided that:
 - (a) the percentage of the site covered by existing impermeable materials is not increased by the proposed development;
 - (b) he considers the advice of the City Engineer; and
 - (c) he considers all applicable policies and guidelines adopted by Council.
- 5.4 The Director of Planning may relax the requirements of section 4.8.4 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:
 - (a) he considers all applicable guidelines and policies adopted by Council; and
 - (b) he considers the advice of the City Engineer.",
- (e) in the RS-5 & RS-5S District Schedule:
- "5.5 The Director of Planning may relax the requirements of Section 4.8.4 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:
 - (a) he considers all applicable guidelines and policies adopted by Council; and
 - (b) he considers the advice of the City Engineer.", and
- (f) in the RS-6 District Schedule:
- "5.6 Relaxation of Impermeable Materials Regulation
- 5.6.1 The Director of Planning may relax the requirements of section 4.8.4 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:

(a) he considers all applicable guidelines and policies adopted by Council; and

(b) he considers the advice of the City Engineer."

3. By-law No. 3575 is also amended by adding the following new section to the RS-4 District Schedule:

"5 Relaxation of Regulations

5.1 The Director of Planning may relax section 4.8.5 for buildings existing prior to May 30, 2000 to a maximum of 70 percent impermeable materials site coverage provided that:

(a) the percentage of the site covered by existing impermeable materials is not increased by the proposed development;

(b) he considers the advice of the City Engineer; and

(c) he considers all applicable policies and guidelines adopted by Council.

5.2 The Director of Planning may relax the requirements of Section 4.8.5 where, due to the peculiarities of the site or special circumstances related to the use of the site, literal enforcement would result in unnecessary hardship, provided that:

(a) he considers all applicable guidelines and policies adopted by Council; and

(b) he considers the advice of the City Engineer."

4. This By-law comes into force and takes effect on the date of its passing.

DONE AND PASSED in open Council this 30th day of May , 2000.


 Mayor


 City Clerk